

Explanation of references to payments.

4. For the removal of doubts it is hereby declared that a provision of the Legal Aid Act requiring anything to be paid into or out of the legal aid fund is not to be taken as requiring the making of an actual payment, so as to prevent the obligation to make it being satisfied in whole or in part by an allowance in account or in any other way; and in that Act references to payments, to sums paid or payable or to receipts and similar references (whether in connection with that fund or not) shall be read accordingly

Short title, construction and citation.
12, 13 & 14
Geo. 6. c. 51.
12, 13 & 14
Geo. 6. c. 63.

5.—(1) This Act may be cited as the Legal Aid Act, 1960.

(2) In this Act “the Legal Aid Act” means as respects England and Wales the Legal Aid and Advice Act, 1949, and as respects Scotland the Legal Aid (Scotland) Act, 1949; and this Act shall be construed as one with the Legal Aid Act.

(3) This Act and the Legal Aid and Advice Act, 1949, may be cited together as the Legal Aid and Advice Acts, 1949 and 1960.

(4) This Act and the Legal Aid (Scotland) Act, 1949, may be cited together as the Legal Aid (Scotland) Acts, 1949 and 1960

CHAPTER 29

An Act to enable a person to marry certain kin of a former spouse. [13th April, 1960]

BE it enacted by the Queen’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Certain marriages not to be void.

1.—(1) No marriage hereafter contracted (whether in or out of Great Britain) between a man and a woman who is the sister, aunt or niece of a former wife of his (whether living or not), or was formerly the wife of his brother, uncle or nephew (whether living or not), shall by reason of that relationship be void or voidable under any enactment or rule of law applying in Great Britain as a marriage between persons within the prohibited degrees of affinity.

(2) In the foregoing subsection words of kinship apply equally to kin of the whole and of the half blood.

(3) This section does not validate a marriage, if either party to it is at the time of the marriage domiciled in a country outside Great Britain, and under the law of that country there cannot be a valid marriage between the parties.

(4) The enactments mentioned in the Schedule to this Act are hereby repealed to the extent specified in the third column of the Schedule.

2.—(1) This Act may be cited as the Marriage (Enabling) Act, 1960, and this Act and the Marriage Acts, 1949 to 1958, may be cited together as the Marriage Acts, 1949 to 1960. Short title,
citation and
extent.

(2) This Act shall not apply to Northern Ireland.

SCHEDULE

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
7 Edw. 7. c. 47.	The Deceased Wife's Sister's Marriage Act, 1907.	The whole Act.
11 & 12 Geo. 5. c. 24.	The Deceased Brother's Widow's Marriage Act, 1921.	The whole Act.
21 & 22 Geo. 5. c. 31.	The Marriage (Prohibited Degrees of Relationship) Act, 1931.	The whole Act.
12, 13 & 14 Geo. 6. c. 76.	The Marriage Act, 1949.	Subsections (2) and (3) of section one; Part II of the First Schedule.

CHAPTER 30

Occupiers' Liability (Scotland) Act, 1960

ARRANGEMENT OF SECTIONS

Section

1. Variation of rules of common law as to duty of care owed by occupiers.
2. Extent of occupier's duty to show care.
3. Landlord's liability by virtue of responsibility for repairs.
4. Application to Crown.
5. Short title, extent and commencement.